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TWO
FRACTURING

What was called "universal history" until recently is far from concluded, and things are far from being set once and for all, forever petrified. Openness and movement remain two of the eminent hallmarks of the age, indeed of the living. Carl Schmitt, cognizant of this fact, affirmed that "as long as men and peoples have a future and not only a past, a new nomos will be born" in "ever new forms." For, he added, each new era of the coexistence of peoples, empires, and countries almost inevitably calls for "new spatial divisions, new enclosures, and new spatial orders of the earth."[1]

Body of the Earth

Before going further, we must go back over what Schmitt understands by the "Earth" and by the term *nomos*. Ordinarily, the term *Earth* evokes a spatial category, an expanse. Comprising more or less firm ground, it features landscapes, reliefs, depths, bedrock, traces, enclosures, reserves of wilderness, sanctuaries. It is believed to be inscribed within a set of directions (east, west, south, north). Made of mineral or vegetable matter, indeed of glebe, it is round and thus circumscribed. Above all, it is inhabited. By inhabiting it, humans, in particular, exercise their hold on it, consigning it to the land register and to development. They cultivate it and may take care of it. Their lives and destinies play out on a ground. As a common home, the Earth is the dwelling place of humans and other species, the object of a primitive sharing between all beings and, from this point of view, both their common name and their maternal body.[2]

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Behind the "Earth" as generic image, there is thus something of the order of a particular power—the power of bedrock, of that on which work, regardless of the forms it takes and whoever its author is, finds its support. But there is also something that belongs to expanse, depths, and root—the root, if not the place of origin of all things, then—that whose limits escape the gaze, that which one digs, and which serves as a fundamental shelter to all those who inhabit it. Although round, the Earth is in fact a sign of the unlimited. No single individual or state can claim legitimate ownership of the Earth as a whole. Humans might leave some mark on it, but deep down, surrounded by a dark night, the Earth always remains distinct from its inhabitants. Few of them have witnessed its first beginnings, and it will never be for all to know its end. In one way or another, something in its substance and materiality therefore makes it fundamentally inappropriable. This is why it occupies such a central position in the "ages of the world."[3]

The Earth is therefore not merely matter, some geological formation, or compact mass made of multiple and stratified layers. Nor is it a silent entity. Beyond its multiple visages, it is also caught in an endless network of symbolic functions. A veritable "belly of the world," it ensures the equilibrium of the cosmos and, so doing, is the place par excellence of the in-common and of distribution.

It is also, however, that which always remains *in reserve*, that is, it is inappropriable. By inappropriable, we must understand not only that which is in principle refractory to procedures of alienation but also that of which no one can be deprived, or the use of which no one can be legitimately denied. In this sense, the Earth is the ultimate verifying instance of what the ancient Greeks called *isonomia*, that is, law not as it applies to all but as it is *equal for all*. It is also the appropriate name to give to the *homoios*, that is, the *like of all others*.[4]

In his *Nomos of the Earth*, Carl Schmitt is, it seems, entirely inattentive to the multiple ways that other cultures have made property and established relationships between the soil and the Earth as such. In his view, humans' relationship to the land is to be primarily considered in terms of law. The earth "is bound to law in three ways," he affirms. "It contains law within itself, as a reward of labor; it manifests law upon itself, as fixed boundaries; and it sustains law above itself, as a public sign of order." And he concludes: "Law is bound to the earth and related to the earth."[5] The

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Earth is thus not considered in itself, but from the point of view of what it bears, from the point of view of its capacity to equitably reward those who plow it (fatigue, labor, and sowing in exchange for harvests), and from the point of view of its ability to figure, in this way, the idea of an almost immanent justice.

In the Schmittian schema, soil constitutes one of the Earth's intrinsic components. What characterizes soil, in turn, is its firmness. To inhabit the land is partly to clear the ground, to mark out and delimit fields, meadows, and woods. It also means planting and sowing, leaving some areas fallow and clearing others. Upon completion of this work, the ground is spiked with hedges and fences, boundary markers and walls. It is dotted with houses, buildings, and other infrastructures. In other words, land becomes meaningful only through the mediation of human labor. Left to itself, it produces no society at all. However, this labor consists essentially in a series of acts of partition and appropriation, or what Schmitt calls "seizures."[6] Such acts of acquisition, which he says are the foundation of law, take various forms. It does not matter if they are devoted to building cities and fortifying them, to colonization, wars, invasions or treaties, occupations, or forming barriers or blockades. Always, they create the "first order of all relations of possession and property."[7] In other words, these acquisitive acts are the original founding acts of law. To "seize" land, to delimit the soil, thus consists in creating legal titles and manufacturing property. It is to distinguish yours from mine.

Schmitt speaks of the "land grabs" as eminently political events, as the "origin of all subsequent concrete order[s] and of all subsequent law[s],"[8] the effective core of all history with a planetary dimension, that is, of a history that confronts everything that happens in the world. Such a history does not embrace only the entire earthly globe. As others have observed, it is also likely to give rise to all kinds of cycles, to set in motion world history, the human totality.[9] Even more, this historial character becomes apparent when the "land grabs" give rise to the emergence of a new "stage of human consciousness of space and global order."[10]

Seen from this angle, planetarity thus has a double dimension. On the one hand, there is no planetarity in the absence of a capacity for global representation of the Earth. On the other hand, there is no planetarity without the consciousness of a common belonging to a spatial order embracing all humanity. A planetary consciousness consequently supposes

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the representation of a world common "to all men and to all peoples," a common star.[11] It is the equivalent of a consciousness that is not of the world, or global, but truly astral, the inscription in a universe that, while signaling an earthly existence, extends it toward the cosmos as a whole. One of the great moments of such an emergent consciousness took place in the period known as the Age of Discovery during the fifteenth and seventeenth centuries, in reality, a moment of sharing and division of the Earth that led not only to a new spatial order, but also to a colliding of imaginaries.[12]

For the first time, the land as a whole was "seized and measured by the global consciousness of the European peoples."[13] We then moved from a land-based existence to a maritime existence. The Industrial Revolution allowed a further step forward with the advent of a technicized world. In the nineteenth century, this process of division and distribution of the globe continued with the conquest of Africa, the annexation of whole sections of its territory, colonial occupation, and the series of cessions that completely overturned Africa's previous spatial order, completing thus the *nomos* inaugurated by the land grabs of the fifteenth through seventeenth centuries. A structural reorganization of the planet ensued, with a new set of limits and a reorganizing of relations of violence and power. This new planetary spatial awareness in turn revived new struggles aimed at drawing lines, new confines, new enclosures.

Escalation

Indeed, since the middle of the twentieth century, the Earth has been undergoing rapid and multiform mutations with paradoxical results.[14] Its own borders are becoming less and less clear. The same is true for that which distinguishes it, for example, from vast maritime spaces, the riches they contain, and the conditions of their appropriation.[15] Whether it is new forms of conflict, the life of currencies, investments and exchanges, or even of spheres of cultural and artistic creativity, including urban forms and religious regimes, everything is being recomposed in conditions of sometimes radical uncertainty. Things that we had become accustomed to are dying. Others that we believed had disappeared for good are returning under new names, with new masks and sometimes on the same stages as yesterday, but with a different cast. Phenomena of mobility outline a multiply mapped world, crisscrossed with places of destination and transit; with

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crossroads, junctions, unsuspected forks and dead ends, walls and protean barriers; with enclaves, camps, and prisons. What new confines, enclosures, borders are there? Where are the new sanctuaries and reserves?[16]

Are the new spatial orders only terrestrial? Where do they begin and where do they end?[17] This world of interfaces and multiple interweavings also announces inevitable secessions. Contemporary logics of secession, segmentation, and expulsion are driven by various planetary technologies. The production of undocumented populations on a larger scale, and thus of populations without any protection, is going ahead apace. This phenomenon concerns not only migrants, refugees, and asylum seekers. It goes hand in hand with the monopolization of the planet's wealth by rich people who today hasten to exercise their *right to flee* and *to disassociate*.

Moreover, this world is not based on one soil but on a plurality of soils.[18] Its ontology is not only physical, geological, hydraulic, or mineral but also vegetal and synthetic. For its functioning and that of the infrastructures of planetary computation that are its prostheses, it requires an energy-consuming extraction of all kinds of resources and minerals, an acceleration of the processes of combustion of various orders, new imaginary, and linguistic mediations.[19]

Describing and analyzing the birth of this multiply mapped world requires knowing that the human race's present and future are inseparable from those of all other living species. To achieve this, we must decompartmentalize, deterritorialize, and open ourselves to questions that are not international or even transversal, but planetary; we must embrace the humanities and the natural sciences, deepen philosophical and historical questioning, and make room for disciplines of the imagination. We are further required to depart from established academic territories, and from disciplinary and institutional calculations, whose only function is to reproduce well-ordered pressures. We are also required to go via oblique or transversal paths in order to get domains to communicate that we normally tend to separate.[20]

In other respects, escalation is an indisputable phenomenon. There is no remaining sphere of contemporary existence that capital has not penetrated. This penetration is naturally uneven. Many parts of the world experience it mainly by proxy. Put in a stupor by poverty, indigence, and destitution, entire classes of populations experience firsthand the dissociation between the world as actually lived (that of bodily life at a particular

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point on the Earth's surface) and the blissful, ubiquitous world of screens, which is certainly within reach of their eyes but remains so far from their hands, their voices, and their means.

Whether we are talking about affects, emotions or feelings, linguistic skills or manifestations of desire, dreaming or thinking, in sum, life itself—nothing seems any longer to escape capital's grip. It has captured the world's very depths, often leaving behind vast fields of debris and toxins, wasted humans afflicted with sores, cankers, and boils. As everything has become a potential source of capitalization, capital has become—a hallucinatory fact of planetary dimensions—a world; it is the producer, on an enlarged scale, of subjects that are at once calculating, fictional, and frenzied.

Capital has become flesh, and everything has become a function of capital, including interiority. The processes that have led to this integral extension are erratic. They create randomness and uncertainty everywhere. That they institutionalize risk and precariousness everywhere is cast as the tough luck that reality dishes out.[21] Sometimes, they get targeted for embezzlement and solicitation. No matter, capital has become our common infrastructure, our nervous system, the transcendental jaw that now maps out our world and its psycho-physical limits.

This world creation is occurring at a time when the ordering of societies is being carried out under a single sign: digital computation. By digital computation, we must understand three things. First, a technical system or even a mechanical device specialized in the work of abstraction and, therefore, in capturing and automatically processing data (material and mental), which must be identified, selected, sorted, classified, recombined, and actioned. If, from this point of view, digitization is a work of abstraction, it is barely separable from another process, namely, calculation—at once of the livable and the thinkable. But whether it is supported by technical architectures, calculation is, in principle, a game of probabilities. Given the matter is ultimately about calculating chance, indeterminacy thus remains the rule.[22]

The computational, second, is an instance of production and the serial constitution of subjects, objects, and phenomena but also of codable and storable consciousnesses, memories, and traces that are, moreover, endowed with circulatory abilities. Third, the computational is the institution through which a common world, a new common sense, and new ordina-

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tions of reality and power are created and shaped. This common world and this common sense result from the fusion of three types of *ratio*, each subject to a dynamic of extension and increase: economic reason, biological reason, and algorithmic reason. All three forms are haunted by the metaphysical fantasy of technolatry.

Computational mechanisms, algorithmic modeling, and capital's subsumption of life in its entirety have become one and the same process. Whether we are talking about bodies, nerves, matter, blood, cellular tissues, brain, or energy, the project remains the same: on the one hand, the conversion of every substance into quantities, the preemptive calculation of potentialities, risks, and hazards with a view to their financialization and, on the other hand, the conversion of organic and vital ends into technical means. The aim is thus to loosen everything from an underlying substratum, corporeality, or materiality; it is to *artificialize* everything, and to *automate* and *autonomize* it. It is a question of submitting everything to effects of quantification and abstraction. Digitalization is nothing else than this capture of forces and potentialities and their annexation by the language of a machine-brain transformed into an autonomous and automated system.

Borderization

Humanity is indeed on the verge of being reborn to a second nature, thanks to an intrinsic transformation of the horizon of calculation and an almost indefinite extension of quantifying logic. It may seem paradoxical, counterintuitive even, to describe this technological moment as entropic. Yet in many respects it is. Indeed, capturing, identifying, dividing, sorting, selecting, and classifying are not activities specific to artificial machines. They are also characteristic of borders, of those places where, for many of our contemporaries, the world is undone and globalization hits its limits.

The border is no longer just a demarcation line that separates distinct sovereign entities. As an ontological device, it now functions by itself and in itself, anonymously and impersonally, with its own laws. To an increasing extent, the border is becoming the proper name of the organized violence that underlies contemporary capitalism and the order of our world in general: children are ripped from their parents and locked in a cage;[23] women and men are disregarded as superfluous and left for dead; shipwrecks and drownings occur by the hundreds, nay, thousands, per week;[24]

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there are the interminable waits and the humiliation endured in consulates, so much suspended time; there is the enduring of days of adversity and drifting in airports, police stations, parks, train stations, and even on big-city sidewalks, where as soon as night falls, blankets and rags are torn from the very human beings who are already stripped and deprived of almost everything, including water, hygiene, and sleep—debased bodies—in short, humanity in distress.[25]

Everything, in fact, returns us to "the border," this zero-site of nonrelation and effective denial of the very idea of a common humanity, or of a planet—the only one that we might have, that we would seem to share, and to which our common condition as passers-by would bind us. To be fully exact, however, it might be necessary to speak not about borders but about *borderization*.[26]

What is *borderization*, if not the process by which this world's powers permanently transform certain spaces into places impassable for certain population classes? What is it if not the conscious multiplication of spaces of loss and mourning at which the lives of so many purportedly undesirable people are shattered?[27] And so what is it, if not a way of waging war against enemies whose living environments and conditions of survival have been destroyed in advance—ruined by the use of armor-piercing uranium ammunition and banned weapons such as white phosphorus; by the high-altitude bombing of basic infrastructures; by the cocktails of carcinogenic and radioactive chemicals that saturate the soil and fill the air; by the toxic dust that rises from the rubble of razed cities; and by the pollution caused by hydrocarbon fires?[28]

Let's turn to the matter of bombs. What kinds of bombs have civilian populations, habitats and environments not had to suffer over the last quarter of the twentieth century? They have endured conventional blind bombs converted by installing inertial navigation systems in their tails; cruise missiles with infrared homing heads; microwave bombs designed to paralyze the enemy's electronic nerve centers; bombs that explode in cities, emitting lightning-like beams of energy as they pass; other microwave bombs that do not kill but burn people and increase skin temperature; thermobaric bombs that trigger walls of fire, absorbing the oxygen of more or less enclosed spaces, killing by shock waves and asphyxiating almost everything that breathes; fragmentation bombs, whose effects on civilian populations are devastating, since they open above the ground and scatter,

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without precision and over large areas, minimal munitions designed to explode on contact with the target—all these bombs demonstrate *ad absurdum* an unheard-of power of destruction.[29]

How, under these conditions, can we really be surprised that survivors of a living hell take flight to, or seek for refuge in, whatever corner of the Earth their lives might be spared? This form of deadening war—calculated and programmed, carried out with new means—is a war against the very idea of mobility, circulation, and speed, whereas the age is precisely about velocity, about acceleration, and about ever more abstraction, ever more algorithms.[30]

Moreover, *borderization* does not target singular bodies but certain human masses deemed vile and superfluous. Their every organ must be the object of a specific incapacitation, inheritable from generation to generation—eyes, nose, mouth, ears, tongue, skin, bones, lungs, intestines, blood, hands, legs. Attesting to this are the maimed individuals, paralytics, and survivors of all the pulmonary diseases like pneumoconiosis, those with traces of uranium in the hair, the thousands of cases of cancers, abortions, infant malformations, congenital deformations, damaged thoraxes, dysfunctions of the nervous system—the great fissuring.

This war on bodies of abjection, piles of human meat, is taking place on a planetary scale. It is becoming the characteristic of our time. Often it precedes, accompanies, or completes that which is going on in our midst or at our doors, the tracking down of bodies that have made the mistake of moving (a notable characteristic of any human body), of bodies that are considered to have forced their way into places and spaces that they should not be, places that they now clutter by their mere presence, and from which they must be forced out.[31]

As the philosopher Elsa Dorlin suggests, this form of violence targets prey.[32] It resembles the great hunts of yesteryear. First of all, it resembles hunting with hounds and traps and their respective techniques—searching for, pursuing, trapping, and flushing out hunted animals, until they are surrounded, captured, or slaughtered with the help of foxhounds and other scent hounds. But it is also part of a long history of manhunting. Grégoire Chamayou has studied the modalities of this in *Manhunts*.[33] It is almost always the same ones who are targeted—runaway slaves, redskins, black skins, Jews, stateless people, the poor and, closer to us, undocumented migrants.[34] These hunts attack live, moving bodies that, while endowed with

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a force of traction, with an intensity, with capacities for flight and mobility, are deemed not to be flesh-and-blood bodies like ours, given how singled out and ostracized they are. This hunt is also taking place at a time when proliferating technologies of acceleration are creating a segmented, multi-speed planet.[35]

The technologization of borders is now running at full tilt. Physical and virtual separation barriers—the digitization of databases and filing systems; the development of new tracking devices such as sensors, drones, satellites, and sentry robots; infrared sensors and cameras of various kinds; biometric controls; and smart cards containing personal data—everything is being implemented to transform the very nature of the border phenomenon and to precipitate the advent of mobile, portable, and ubiquitous borders.[36]

Confinement and Purgation

Migrants and refugees are therefore not, as such, the primary object of the dispute. Moreover, they have neither proper names, nor singular faces, nor identity cards. They are only crypts, sort of ambulant vaults on the surface of multiple organs, empty but threatening forms in which one seeks to bury the fantasies of an era terrified by itself and its own excesses. The dream of flawless security, which requires not only systematic and total surveillance but also purgation, is symptomatic of the structural tensions that, for decades, have accompanied our passage into a new technical system that is increasingly automated, reticular, and simultaneously increasingly abstract, made of multiple screens—digital, algorithmic, numinous.

The world has ceased to manifest itself to us in the old terms. We bear witness to the birth of a new form of the human (the subject/object) and other types of spatialities. The phenomenological experience that we had of the world has been profoundly weakened. Reason and perception no longer coincide. Hence the panic. We see less and less what is given to us to see, and more and more what we want to see at all costs, even if what we want to see at all costs does not correspond to any originary reality. Perhaps more than before, others can give themselves to us in a concrete physical and tactile presence while remaining in a spectral absence and an equally concrete, almost phenomenal void. This occurs with migrants, refugees, and asylum seekers. It is not only their mode of appearance

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among us that besets us with historical and existential anxiety. It is also the ontophanic matrix of which we assume them to be a mere mask (what is actually there, behind what appears?) that plunges us into a state of radical agitation and uncertainty.

In an increasingly balkanized and enclaved world, where do we find the deadliest migration routes? Europe! Where, at the beginning of this century, do we find skeletons at sea in the world's largest marine cemetery? Europe! Where do we find all those deserts, territorial and international waters, inlets, islands, straits, enclaves, canals, rivers, ports and airports that are being transformed into technological iron curtains? Europe! And to top it all off, in these times of permanent escalation, Europe is also where we find camps. The return of camps.[37] The Europe of camps. Samos, Chios, Lesbos, Idomeni, Lampedusa, Ventimiglia, Sicily, Subotica—the rosary-beads of camps.[38]

Refugee camps? Displaced persons camps? Migrant camps? People held in waiting zones at transport hubs? Transit zones? Detention centers? Emergency accommodations? Jungles? A composite and heterogeneous landscape, to be sure. But let's sum it all up in one term, the only one that truthfully describes what is going on here: *foreigners' camps*. In the final analysis, it is not about anything else. They are foreigners' camps, and they can be found in Europe's core and on its peripheries. This term is the only fitting one for these devices and the kind of carceral geography they plot.[39]

A few years ago, the European Union had nearly four hundred of them. That was prior to the great influx of 2015. Ever since, Europe has created new camps, including triage camps, inside and on its borders, and it has had them built in third-party countries. In 2011, these various detention facilities were holding as many as 32,000 people. By 2016, the number had risen to 47,000. The detainees are mainly people without visas or residence permits, those deemed ineligible for international protection. These facilities are essentially places of internment, spaces of banishment, devices for segregating people considered to be intruders, unentitled, without rights, and thus devoid of dignity. These people flee from worlds and places that have been made uninhabitable by a twofold predation, both exogenous and endogenous, and then introduce themselves where they should not have, without being invited or wanted. The ultimate goal of regrouping and excluding them can thus hardly be their rescue. By arresting them in camps, the intention is also—after having placed them in

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a position of waiting that first strips them of any common-law status—to make them the sorts of subjects who can be deported, repressed, and even destroyed.[40]

This war, which consists of hunting down, capturing, regrouping, sorting, separating, and expelling has only one goal. It is not so much about cutting Europe off from the world, or making it an impregnable fortress, as it is about consecrating, as the European's exclusive privilege, the right to possess and move freely across the entirety of a planet to which we are all entitled.

Will the twenty-first century be about devising security technologies to sort and select? From the borders of the Sahara to the Mediterranean, is the camp on the way to becoming, once again, the terminus of a certain European project, of a certain idea of Europe in the world, its fatal mark, as Aimé Césaire intuited not long ago?[41]

One of the liberal order's major contradictions has always been the tension between freedom and security.[42] But this issue seems to have been resolved. Today security prevails over freedom. Yet a society of security is not necessarily a society of freedom.

A society of security is a society dominated by an irrepressible need to subscribe to a set of certainties. It is a society afraid of the kind of questioning that opens onto the unknown and therewith onto the risk that must be contained.

That is why the priority of a society of security is to identify at all costs what lurks behind every appearance—it wants to know who is who; who lives where, with whom, and since when; who is doing what; who has come from where; who is going where, when, by which route, and why; and so on and so forth. And, further still, who is planning to commit what acts, whether consciously or unconsciously. The project of the security society is not about affirming freedom but about controlling and governing modes of appearance.

Today's myth is that technology is the best tool for governing modes of appearance, that technology alone can solve this problem, which is one of order but also of knowledge, of reference points, anticipation, and forecasting. We may fear that the dream of a humanity transparent to itself, devoid of mystery, is only a catastrophic illusion. At the present moment, migrants and refugees are the ones paying the price for it. In the long run, they are sure not to be the only ones.

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How can we, under these conditions, resist this claim by one of the world's provinces to have a universal right of predation unless we dare to imagine the impossible: namely, the abolition of borders, that is, the restoration to all the inhabitants of the Earth, human and nonhuman, the inalienable right to move about freely on this planet?

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